

1 **SENATE FLOOR VERSION**

2 February 24, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 873

By: Rosino of the Senate

and

Stinson of the House

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9 An Act relating to the University Hospitals
10 Authority; amending 63 O.S. 2021, Section 3204, which
11 relates to University Hospitals; removing obsolete
12 property descriptions; amending 63 O.S. 2021, Section
13 3205, which relates to operations of University
14 Hospitals; creating certain certificate of need
15 exemption; requiring operation of public Level I
16 Trauma Center; requiring certain compliance and
17 certification; updating statutory language; and
18 providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 63 O.S. 2021, Section 3204, is
21 amended to read as follows:

22 Section 3204. A. Until July 1, 1993, the University Hospitals
23 shall be under the jurisdiction, supervision, management and control
24 of the Department of Human Services ~~and the Commission for Human~~
~~Services.~~

1 B. Effective July 1, 1993, the University Hospitals are hereby
2 transferred from the Department of Human Services ~~and the Commission~~
3 ~~for Human Services~~ to the University Hospitals Authority.

4 C. The transfer shall include:

5 1. All powers, duties, responsibilities, properties, assets,
6 fund balances, encumbrances, obligations, records, personnel and
7 liabilities including, but not limited to, liability for all
8 University Hospital employees' sick leave, annual leave, holidays,
9 unemployment benefits and workers' compensation benefits accruing to
10 employees prior to July 1, 1993, which are attributable to the
11 University Hospitals; provided, however, that any claims arising
12 under the Governmental Tort Claims Act and filed prior to July 1,
13 1993, and from any other actions filed prior to July 1, 1993, shall
14 remain the responsibility of the Department of Human Services ~~and~~
15 ~~the Commission for Human Services~~. All claims arising prior to July
16 1, 1993 and for which no action has been filed shall be paid by the
17 Risk Management Program;

18 2. Oklahoma Children's Hospital and all buildings and
19 appurtenances located on land which is described as follows: Blocks
20 B, 3, 4, 12 and 13, and the North 30 feet of Block 14; and Lots 6
21 through 15, Block 21, CULBERTSON HEIGHTS ADDITION less and except
22 the West 7 feet of Lot 5 and all of Lots 6 through 19, and the East
23 5 feet of Lot 20 and the North 59.5 feet of Lots 21 through 26, and
24 the North 59.5 feet of the West 49.5 feet of Lot 27, all in Block

1 13, CULBERTSON HEIGHTS ADDITION to the City of Oklahoma City,
2 Oklahoma, and also less and except the West 106 feet of the vacated
3 Northeast 12th Street abutting said Block 13; and a part of Block
4 20, CULBERTSON HEIGHTS ADDITION and a part of the alleys adjacent
5 thereto, and a part of the SW 1/4, Section 26, T12N, R3W, I.M., and
6 a part of the SE 1/4, Sec. 27, T12N, R3W, I.M., Oklahoma County,
7 Oklahoma, and a part of vacated Kelley Avenue adjacent thereto, more
8 particularly described as follows: Commencing at the NE corner of
9 Block 20, CULBERTSON HEIGHTS ADDITION, Oklahoma City, Oklahoma,
10 thence S. 0 degrees 03' 34" E. and along the East line of said Block
11 20 and along the West Right-of-Way line of Stonewall Avenue a
12 distance of 10 ft. to the point or place of beginning; thence
13 continuing S. 0 degrees 03' 34" E. and along the East line of said
14 Block 20 and along the West Right-of-Way line of Stonewall Avenue a
15 distance of 341.27 ft., thence N. 89 degrees 54' 35" W. a distance
16 of 520.10 ft., thence N. 0 degrees 11' 08" E. a distance of 18.0
17 ft.; thence N. 89 degrees 48' 52" W. a distance of 12.0 ft.; thence
18 N. 0 degrees 11' 08" E. a distance of 6 ft.; thence N. 89 degrees
19 48' 52" W. a distance of 21.5 ft., thence N. 0 degrees 11' 08" E. a
20 distance of 22.5 ft., thence N. 89 degrees 48' 52" W. a distance of
21 286.5 ft., thence N. 89 degrees 48' 52" W. a distance of 27.00 feet;
22 thence N. 0 degrees 12' 03" E. a distance of 72.50 feet; thence N.
23 89 degrees 48' 51" W. a distance of 25.65 feet; thence N. 23 degrees
24 29' 12" W. a distance of 250.50 feet to a point on the South Right-

1 of-Way line of N.E. 13th Street; thence S. 89 degrees 48' 51" E. and
2 along the South Right-of-Way line of N.E. 13th Street a distance of
3 649.76 feet; to a point in the East line of said SE 1/4 of Section
4 27, T12N, R3W, thence S. 0 degrees 06' 23" W. along the East line of
5 said Section 27, a distance of 10.0 ft., thence N. 89 degrees 33'
6 42" E. and parallel to and 10 ft., South of the North line of said
7 Block 20 of said CULBERTSON HEIGHTS ADDITION a distance of 342.10
8 ft. to the point or place of beginning; and

9 3. a. University Hospital and all buildings and
10 appurtenances located on land which is described as
11 follows: A part of the South Half of the Southeast
12 Quarter of Section 27, T12N, R3W of the Indian
13 Meridian AND a part of the North Half of the Northeast
14 Quarter of Section 34, T12N, R3W, of the Indian
15 Meridian, all in Oklahoma County, Oklahoma, more
16 particularly described as follows: Beginning at the
17 Southwest corner of Block 13, HOWE'S CAPITOL ADDITION;
18 thence N. 0 degrees 10' 36" E. along the East line of
19 Phillips Avenue a distance of 674.64 feet to a point
20 on the South line of Northeast 13th Street; thence S.
21 89 degrees 48' 51" E. along the South line of said
22 Northeast 13th Street a distance of 620.30 feet;
23 thence S. 23 degrees 29' 12" E. a distance of 250.50
24 feet; thence S. 89 degrees 48' 51" E. a distance of

25.65 feet; thence S. 0 degrees 12' 03" W. a distance
of 72.50 feet; thence S. 89 degrees 48' 51" E. a
distance of 27.00 feet; thence S. 00 degrees 12' 03"
W. a distance of 443.57 feet; thence S. 89 degrees 43'
03" E. a distance of 32.95 feet; thence S. 00 degrees
14' 28" W. along the East line of a retaining wall a
distance of 733.66 feet to a point on the South line
of Block 1 of OAK PARK ADDITION; thence S. 89 degrees
52' 55" W. along the South line of Blocks 1 and 7 of
OAK PARK ADDITION a distance of 810.11 feet to the
Southwest corner of said Block 7; thence N. 00 degrees
10' 36" E. along the West line of said Block 7, OAK
PARK ADDITION a distance of 213.87 feet; thence N. 89
degrees 49' 24" W. a distance of 3.40 feet; thence N.
00 degrees 10' 36" E. along the West line of Block 24,
HOWE'S CAPITOL ADDITION a distance of 190.00 feet;
thence S. 89 degrees 49' 24" E. a distance of 8.10
feet; thence N. 00 degrees 10' 36" E. along the West
line of Block 18, HOWE'S CAPITOL ADDITION a distance
of 405.00 feet to the Point of Beginning and
containing 1,146,572 Square Feet or 26.32 Acres more
or less~~+~~, and

- b. ~~That portion of the property described in subparagraph~~
~~a known as the Research Building shall be transferred~~

~~to the Authority, but shall be leased to the University of Oklahoma for a term of not less than forty (40) years from the date thereof; and~~

e. All of Blocks 1 and 2 of Culbertson Heights Addition, and all of Block 3 and Lots 3 through 20 and the North 50 feet of Lots 21 through 38 of Block 12, Oak Park Addition to the City of Oklahoma City, Oklahoma including the encompassed and abutting portions of the vacated Northeast 11th Street, Park Place and Northeast 10th Street, and the abutting portion of Everest Avenue and the alley way in Block 12 of the said Oak Park Addition.

D. ~~Properties to be retained by the~~ The Department of Human Services ~~include:~~

1. ~~The~~ shall retain the Service Center Building and land located on: The South 100 feet of Block 12 and all of Block 17, Oak Park Addition to the City of Oklahoma City, Oklahoma including the encompassed or abutting portions of vacated Everest Avenue and Northeast 9th Street. (219,300 sq. ft., 5.03 acres); ~~and~~

2. ~~The Management Information Division Building and land located on: The West 7 feet of Lot 5 and all of Lots 6 through 19, and the East 5 feet of Lot 20 and the North 59.5 feet of Lots 21 through 26, and the North 59.5 feet of the West 49.5 feet of Lot 27, all in Block 13, Culbertson Heights Addition to the City of Oklahoma~~

1 ~~City, Oklahoma, and also including the West 106 feet of the vacated~~
2 ~~Northeast 12th Street abutting said Block 13. (82,199 sq. ft., 1.89~~
3 ~~acres).~~

4 E. Appropriate conveyances shall be executed to effectuate the
5 transfers specified by subsections B, C and D of this section.

6 SECTION 2. AMENDATORY 63 O.S. 2021, Section 3205, is
7 amended to read as follows:

8 Section 3205. A. ~~The transfer of the University Hospitals from~~
9 ~~the Commission for Human Services and the Department of Human~~
10 ~~Services shall not require a Certificate of Need pursuant to the~~
11 ~~provisions of Sections 2651 through 2656.2 of Title 63 of the~~
12 ~~Oklahoma Statutes; provided, however, that~~ Notwithstanding any other
13 law, any expansion, addition, or change to the University Hospitals
14 ~~requiring a Certificate of Need after such transfer shall be subject~~
15 ~~to the provisions of Sections 2651 through 2656.2 of Title 63 of the~~
16 ~~Oklahoma Statutes~~ in furtherance of the University Hospitals
17 Authority Act shall not require a certificate of need.

18 B. 1. University Hospitals shall be operated as general
19 hospitals and shall be licensed by the State Commissioner of Health,
20 and shall, as far as possible, meet the standards, requirements and
21 essentials of the Joint Commission ~~on Accreditation of Health Care~~
22 ~~Organizations~~, the American Medical Association's Council on Medical
23 Education, the American Specialty Boards and the Association of
24 American Medical Colleges.

1 2. The University Hospitals shall operate a public Level I
2 Trauma Center and shall meet the standards and requirements of the
3 American College of Surgeons to attain such designation. The
4 University Hospitals Authority shall annually certify to the
5 Oklahoma Health Care Authority that the University Hospitals meet
6 such standards and requirements with respect to any Medicaid
7 supplemental payments to be received from the Oklahoma Health Care
8 Authority for the public Level I Trauma Center.

9 3. The University Hospitals may provide services and receive
10 payments therefor under Titles XVIII and XIX of the federal Social
11 Security Act, and may participate in other federal medical programs.

12 ~~3.~~ 4. University Hospitals shall be available as teaching and
13 training hospitals for the colleges of the University of Oklahoma
14 Health Sciences Center, for the ~~College of Medicine of the~~
15 University of Oklahoma College of Medicine, and for other health and
16 educational facilities and shall provide indigent patient care.

17 SECTION 3. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
19 February 24, 2025 - DO PASS AS AMENDED BY CS
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